



DEPARTMENT OF THE NAVY
NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND, MID-ATLANTIC
9324 VIRGINIA AVENUE
NORFOLK, VIRGINIA 23511-3095

J&A No. ML-26-01

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity.

The contracting activity is Naval Facilities Engineering Systems Command, Mid-Atlantic (NAVFAC ML), Norfolk, Virginia.

2. Description of the Action Being Approved.

This Justification and Approval (J&A) authorizes the use of “brand name or equal” references in construction solicitations where it is necessary to effectively communicate interior color and finish selections. Specific brand name finish and descriptions are listed in Attachment 1 below and are specific to solicitation N4008525R2639 and the resulting contract.

3. Description of Supplies/Services.

The intent of solicitation N4008525R2639 for Design Bid Build (DBB) P-222 MQ-25 Aircraft Laydown Facilities located at Naval Station Norfolk in Norfolk, VA is to renovate an updated hangar and training facility for MQ-25 unmanned aircraft at Naval Station Norfolk. The work includes renovating the interiors of existing hangar facility, LP-48, and building an adjacent new construction serving as an extension of the Activity mission, LP-48A.

The intent of this J&A is to approve the use of brand name or equal purchase descriptions in accordance with FAR 11.104, identifying paint colors and interior finishes by brand names and proprietary descriptions from specific manufacturers. The solicitation is not intended to limit competition, however, and this justification does not seek approval to limit competition in this regard.

This acquisition will solicit proposals utilizing full and open competition, as authorized by the approved DD2579 on 16 May 2025. The estimated value of the work included in this construction solicitation is [REDACTED] and the estimated value of the brand name or equal items that are subject to this J&A is [REDACTED]. The project will be funded by [REDACTED] for construction. The work under this contract is required to be completed within 1,017 days after award.

In order to sufficiently define the scope of work to be performed by a general construction contractor, a Basis of Design (BOD) is prepared to document the principles, assumptions, rationale, criteria, and considerations used for calculations and decisions required during design. When preparing a BOD for a construction project, it is not practicable to convey the required finishes to potential offerors using generic descriptions. For example, it is not feasible to adequately describe a particular shade of paint color which must be used to provide a cohesive appearance for an aesthetically pleasing, professional environment; however, the intended hue can be conveyed by referencing a particular manufacturer’s proprietary product, and that color can then be replicated in any brand of paint. Therefore, the use of brand name references is necessary to convey requirements to achieve the overall coordinated desired appearance but is not intended to restrict competition. The identified brand name items are intended to solely relay the

BOD for the structural interior finishes. The specification for finish materials will include the manufacturer's name, product line, model number, and any identifiable information specific to that material/finish accompanied by salient characteristics and generic technical specifications necessary for "equal" products to meet contract performance requirements. While it is possible for many manufacturers to produce finishes that are functionally equivalent to these designated finishes, the intent of providing a BOD is to have standard stock products to be provided without having custom products manufactured specifically for this facility. During the design of the facility, the designer of record has verified the products using manufacturer brand names are not proprietary and can be met by many established manufacturers.

4. Statutory Authority Permitting Other Than Full and Open Competition.

Per DFARS 211.14(c)(2) and in accordance with section 888(a) of the National Defense Authorization Act for Fiscal Year 2017 (Pub. L. 114-328), the justification and approval addressed in FAR 6.303 is required in order to use brand name or equal descriptions. The statutory authority for this acquisition permitting other than full and open competition is 10 U.S.C. 3204(a)(1) which permits the use of limited suppliers when it is essential to the Government's requirements, as implemented by FAR 6.302-1, Only one responsible source and no other supplies or services will satisfy agency requirements.

This justification applies only to the brand name or equal products describing structural interior finishes, as specified in the construction contract documents for project Design Bid Build (DBB) P-222 MQ-25 Aircraft Laydown Facilities at Naval Station Norfolk located in Norfolk, VA

5. Rationale Justifying Use of Cited Statutory Authority.

The Structural Interior Design (SID) of a facility includes building-related design elements and components as part of the building construction to include but not limited to, paint, wall coverings, ceiling finishes, floor coverings (e.g. tile, carpet, etc.), primary window treatments (e.g. blinds, shades and drapery hardware, etc.), signage and built-in casework. The interior designer must determine the desired interior finish materials based on the required aesthetic, durability and maintenance qualities, and characteristics applicable to each space within the facility. The SID is designed by a qualified interior designer in accordance with Unified Facilities Criteria (UFC) 3-120-10 Interior Design, Chapter 2 paragraph "Interior Designer Qualifications."

It is necessary for the government to include brand names or proprietary specifications for finishes to have a complete design that can be properly conveyed to the construction contractor for bidding. UFC Requirements: (reference UFC 3-120-10 with Change 1, paragraph 4-5.1).

The interior designer must provide all finish and color selections including finish code, manufacturer's materials, textures, patterns, color names and numbers for all interior finishes and specialties which will be exposed to view in the finished construction.

In addition, the UFC stipulates the use of the following disclaimer: (reference UFC 3-120-10 with Change 1, paragraph 4-5.1.2):

The Government prohibits the use of proprietary materials, finishes and colors. A disclaimer must be used on the drawings or in the specifications indicating materials and colors are shown for reference only. However, it is important to use specific manufacturer, finish and color information to establish a frame of reference in the development of the [Structural Interior Design] SID. Reference UFGS 09 06 00 Schedules for Finishes for the appropriate disclaimer to use that addresses this issue when developing the SID.

UFGS 09 06 00 Schedule for Finishes, Paragraph 2.1 states:

“The color schedule information provided in the following paragraphs lists the colors, patterns and textures required for exterior and interior finishes, including both factory applied and field applied colors. Where color is shown as being specific to one manufacturer, an equivalent color by another manufacturer may be submitted for approval. Manufacturers and materials specified are not intended to limit the selection of equal colors from other manufacturers.”

For construction contracts, FAR 52.236-5, Materials and Workmanship, addresses any potential competition concerns associated with including a basis of design on the plans or in the specifications and has been well defined and an industry standard by the construction contracting community for decades. In part, this clause states: “References in the specifications to equipment, material, articles, or patented processes by trade name, make, or catalog number, shall be regarded as establishing a standard of quality and shall not be construed as limiting competition. The Contractor may, at its option, use any equipment, material, article, or process that, in the judgment of the Contracting Officer, is equal to that named in the specifications, unless otherwise specifically provided in this contract.”

The identified brand/manufacturer items or proprietary specifications are intended to be examples for the basis of the facility’s interior design to help ensure visual integrity of the building’s interior finishes. Interior finishes will be procured and installed as part of firm-fixed-price, design-bid-build construction contracts and will be solicited in accordance with all applicable policies, procedures, guidance, and laws related to competition. Paint colors and interior finishes of a building can easily be color-matched by a variety of manufacturers and suppliers. It is common in the industry for colors and finishes to be identified by a particular brand or manufacturer and that brand’s name or identifier for the product. The government has a legitimate need in this case for specific interior paint colors and building finishes, but does not seek to limit the source of those materials to a specific brand or manufacturer.

There is no alternative method to complete the Structural Interior Design (SID) for a design-bid-build contract and ensure an aesthetically, coordinated building interior. Utilizing a basis of design is a critical component of designing complete and coordinated structural interior design under the current UFC. It is not possible to fully design a coordinated system of interior materials and colors to meet technical requirements without assumptions of specific materials using manufacturer names and product information. The only potential alternative is to convert all solicitations into a design-build procurement without complete designs and require the effort of a professional, certified interior designer to meet the requirements set forth in UFC 3-120-10 Interior Design, after award to a Contractor. This alternative does not meet the government’s interests in providing a complete design for the facility since the government has determined a design-bid-build procurement for this facility is in the best interests of the government pursuant to FAR Part 36 “Construction and Architect-Engineer Contracts” and Engineer Regulations (ER) 1180-1-9.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

The government is not attempting to limit competition or the supply of these materials to one source. No efforts were made to identify multiple sources of paint or interior finishes because the solicitation will not limit the ultimate contractor to providing materials from only one or a limited number of brands or manufacturers. The Notice of Intent for the brand name or equal items was published to SAM.gov on 07 April 2025 with a closing date of 18 April 2025. [REDACTED] A pre-solicitation notice and solicitation will both be publicized on SAM.gov, in accordance with the requirements of FAR Part 5. The approved J&A will also be made publicly available as required by FAR 6.305.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer will determine that the price for this acquisition is fair and reasonable in accordance with FAR Part 15 prior to contract award. Analysis will be performed by one or more of the following techniques: (1) Comparison of proposed prices received in response to the RFP; (2) Comparison of proposed prices with the Independent Government Cost Estimate (IGCE); (3) Comparison of proposed prices with available historical information; and/or (4) Comparison of market survey results. The fair and reasonable determination will be made based on the total price of the project. These brand name or equal items are not individual line item prices in the solicitation.

8. Actions to Remove Barriers to Future Competition.

This solicitation does not limit competition. If it comes to NAVFAC MIDLANT's attention that the proposed language is having a limiting effect on competition or the selection of alternate sources of material within the scope of this justification, the contracting officer will seek counsel and make efforts to take remedial measures.

Attachment 1

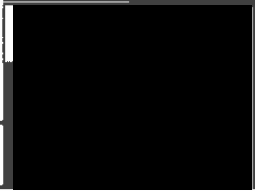
CODE	MATERIAL	MANUFACTURER	DESCRIPTION	COLOR	FINISH	SIZE	TOTAL (LP-48A)	TOTAL (LP-48)
ACT1	ACOUSTICAL CEILING TILE	ARMSTRONG	CALLA HIGH NRC, 15/16" SQUARE REGULAR, PRODUCT #2846, GRID: PRELUDE XL 15/16", GRID COLOR: WHITE	WHITE (WH)	SMOOTH	24" X 24" X 1-3/4"		
ACT2	ACOUSTICAL CEILING TILE	ARMSTRONG	KITCHEN ZONE, 15/16" SQUARE LAY-IN, PRODUCT #673, GRID: PRELUDE 15/16", GRID COLOR: WHITE	WHITE (WH)	SMOOTH	24" X 24" X 5/8"		
ACT3	ACOUSTICAL CEILING TILE	ARMSTRONG	CALLA, 15/16" SQUARE REGULAR, PRODUCT #2822, GRID: PRELUDE XL 15/16", GRID COLOR: WHITE	WHITE (WH)	SMOOTH	24" X 24" X 1"		
C1	CHEMICAL SPLASH CURTAIN	STEEL GUARD	SPLASH & ACID RESISTANT CHEMICAL SPLASH CURTAIN, 40 MIL CLEAR PVC - FR WITH 18 OZ COATED VINYL FR - OPAQUE TOP AND BOTTOM PANEL, TRANSPARENT MIDDLE PANEL, OPAQUE TOP AND BOTTOM PANEL	CLEAR TRANSPARENT / BLACK OPAQUE		7'-6"H		
C2	PRIVACY CURTAIN	ARCHITEX	COLLECTION: SKIPPER	SPICE		9'-0"H		
CG1	CORNER GUARD	INPRO	60BN BLUNOSE HIGH IMPACT	BRUSHED NICKEL #5E016		2" WING		
CPT1	CARPET TILE	INTERFACE	COLLECTION: NIGHT LIGHTS, STYLE: TRANSLUCENT	#107227 IRON		9.845" X 39.38"		
CPT2	CARPET TILE	INTERFACE	COLLECTION: NIGHT LIGHTS, STYLE: REFLECTORS	#107272 IRON POPPY		9.845" X 39.38"		
CT1/2	CERAMIC TILE (FLOOR/WALL)	CROSSVILLE	COLLECTION: BELJN; PORCELAIN TILE	#BJN02 PLATINUM SOLITAIRE	UNPOLISHED	12" X 24"		

CT3	CERAMIC TILE (WALL)	CROSSVILLE	COLLECTION: COLOR BLOX 2.0; PORCELAIN TILE	#CBX31 COTTON SHEETS	UNPOLISHED	12" X 24"
CT4	CERAMIC TILE (WALL ACCENT)	CROSSVILLE	COLLECTION: NATIVE METAL	#NVM03.1HEXIMOS CRUCIBLE STEEL WITH IRON	UNPOLISHED	12" X 24"
CT5	CERAMIC TILE (FLOOR)	CROSSVILLE	COLLECTION: CHAMONIX	#HCX05 GRAY HEXAGON	UNPOLISHED	MIXED HEX MOSAIC
CTB1	CERAMIC TILE BASE	DEL CONCA USA	COLLECTION: BELJN; SINGLE BULLNOSE BASE	#BJN02 PLATINUM SOLITAIRE	UNPOLISHED	4" x 24"
EFM1	ENTRANCE FLOOR MAT	CONSTRUCTION SPECIALITIES	PEDITRED LP; PRODUCT #G3; RECESSED LEVEL BASE FRAME	#9325 GRAPHITE	HEAVY DUTY CARPET INSERT	
FRP1	FIBERGLASS REINFORCED PANEL	MARLITE	STANDARD FRP; CUT TO FULL HEIGHT OF WALL; PROVIDE ANODIZED ALUMINUM TRIM FOR INSIDECORNERS, OUTSIDE CORNERS AND DIVISION STRIPS	#P100 WHITE	PEBBLED	VARIES
FS	FLOOR MARKING	FLOOR MARKING	EPOXY PAINT STRIPING	FEDERAL STANDARD: VARIES		
GR	GROUT	LATICRETE	SPECTRALOCK PRO; EPOXY	VARIES		
HPC	HIGH PERFORMANCE COATING		FEDERAL STANDARD: VARIES	FEDERAL STANDARD: VARIES		
LK1	LOCKERS (RESTROOM)	SCRANTON	DURALIFE; STYLE TWO-TIER Z-LOCKER; 4-INCH HIGH BASE AND SLOPE TOP	BLACK	ORANGE PEEL	12"W X 12"D X 72"H
LK2	LOCKERS	HOLLMAN	COLLECTION: MODEL C1; STYLE: TRIPLE TIER LOCKER; MODEL #ECLC1; BASE: 4"	INTERIOR: IPB BLACK; INTERIOR SB BLACK (SMOOTH)		12"W X 15"D X 84"H

MT1	METAL TRIM	SCHLUTER	DILEX-HKS	V24A	STAINLESS STEEL	
MT2	METAL TRIM	SCHLUTER	QUADEC	V24A	STAINLESS STEEL	
MT3	METAL TRIM	SCHLUTER	FINEC-SQ	AE	SATIN ANODIZED ALUMINUM	
PL	PLASTIC LAMINATE	WILSONART / FORMICA	STANDARD HPL	VARIES	MATTE	
PP1	PLASTIC PANEL (WALL)	3FORM	COLLECTION VARIA; TRANSLUCENT ACRYLIC PANEL LID-1037209 SO-586218 1	CLEAR	GRID	1/4"
PT1/2/4/5	PAINT(GENERAL WALL AND CEILING / WALL ACCENT NOT LISTED / WALL MARKINGS AT DECK)	SHERWIN WILLIAMS	VARIES / FEDERAL STANDARD WALL MARKING AT DECK	COLOR VARIES / FEDERAL STANDARD WALL MARKING AT DECK		
PT3	PAINT(METAL TRIM)	SHERWIN WILLIAMS	SW7663	MONORAIL SILVER		
PT6	PAINT(GENERAL EPOXY)	SHERWIN WILLIAMS	SW7005	PURE WHITE		
PT7	PAINT(CEILING EPOXY)	SHERWIN WILLIAMS	SW7006	EXTRA WHITE		
PT8	PAINT(EXPOSED CEILING)	SHERWIN WILLIAMS	SW6990	CAVIAR		
RB1	RESILIENT BASE	TARKETT	DURACOVE THERMOPLASTIC RUBBER 1/8" WITH TOE	#40 BLACK		4"
RB2	RESILIENT BASE (MILLWORK)	TARKETT	MILLWORK BASE PROFILE: REVEAL MW-XX-F	#40 BLACK		4.25"
RF1	RESINOUS FLOOR	SHERWIN WILLIAMS	RESUFLOOR TOPFLOOR SL23; 6" INTEGRAL BASE	PEWTER		
RF2	RESINOUS FLOOR (FLAKE)	DUR-A-FLEX	HYBRIFLEX EC; 4" INTEGRAL BASE	PEWTER		
RF3	RESINOUS FLOOR (FUEL RESISTIVE)	SHERWIN WILLIAMS	RESUFLOOR SCREED TG46; 5-COAT FUEL - RESISTIVE SYSTEM	#54 STEEL GRAY		

RFT1	RESILIENT FLOOR TILE	TARKETT	LUXURY VINYL TILE; COLLECTION: EVEN PLANE; STYLE: CEMENT CHEVRON	#8818 MEDIUM GREY		9.84" X 39.3"
RFT2	RESILIENT FLOOR TILE	SHERWIN WILLIAMS	SOLID VINYL TILE; COLLECTION: ADMIX; STYLE: 1347V	#00110 MOON SHELL		36" X 36"
RST1	RUBBER STAIR TREAD	TARKETT	VINYL STAIR TREADS WITH HEAVY DUTY SQUARE NOSINGS; COLLECTION: SAFE-T-FIRST; PRODUCT # HD-XX-SQ; 1" PHOTOLUMINESCENT TAPE	#40 BLACK		
RWS1	ROLLER WINDOW SHADE	INPRO	WT SHADE; PRODUCT: MANUAL DUAL SOLAR AND BLACKOUT; SOLAR SHADE OPENNESS: 3%	#253-90		
SAC	SOUND ABSORBING CEILING	TURF	COLLECTION: RIDGE / WEDGE; 9MM FELT ANGULAR BAFFLE	VARIES		
SAW1	SOUND ABSORBING WALL UNIT	AVL SYSTEMS	ACOUSTECH WALL PANEL; FABRIC FACING: GUILFORD OF MAINE; THICKNESS: 2"; EDGE PROFILE: SQUARE	#224 WHITE	FR701 2100	AVERAGE SIZE 10'-0"L X 4'-0"W
SC1	SEALED CONCRETE	ASHFORD FORMULA	ASHFORD FORMULA DENSIFIER; NON-SLIP HARDENER/DENSIFIER; STAIN RESISTANT SEALER; STAIN PROTECTANT SEALER	CLEAR		
SC2	SEALED CONCRETE	SIKA USA	SIKAFLOOR-200 C ESD; HIGH BUILD ELECTROSTATIC CONTROL EPOXY COATING			
SSM1	SOLID SURFACE	MEGANITE		#M007 MT. CARRARA		
SSM2	SOLID SURFACE	MEGANITE		#001A BRIGHT WHITE		

SSM2	SOLID SURFACE (SILLS AND SHOWER RECEPTORS)	MEGANITE / INPRO		BRIGHT WHITE		
TP1	TOILET PARTITION / URINAL SCREEN	SCRANTON	HINY HIDERS; WALL-MOUNTED OVERHEAD-BRACED TOILET PARTITIONS; WALL-MOUNTED URINAL SCREENS; CONTINUOUS BRACKET	BLACK	ORANGE PEEL	
VDU1	VISUAL DISPLAY UNIT	CLARIDGE	SERIES 1 LCS PORCELAIN MAGNETIC WHITEBOARD; FLAT MARKER TRAY; 1" MAPRAIL	100 WHITE		4'-0"H X WIDTH VARIES
VDU2	VISUAL DISPLAY UNIT	NOVA DISPLAYS	ART/PICTURE HANGING SYSTEM, PH1005 DOUBLE SIDED CHANNEL, CQQ 1 5MM CABLE SUSPENSION, PA8 QUICK FIT TOGGLES, CF125 PICTURE HOOKS	BLACK		1-3/4"H
VDU3	VISUAL DISPLAY UNIT	CLARIDGE	SERIES 1 TYPE CO CORK TACKBOARD	1132 BLACK		3'-0"H X 4'-0"W
WC1	WOOD WALL COVERING	STACKED WOOD	COLLECTION: NEWERA; SPECIES: WALNUT WITH MDF CORE	#2094 AMAZED WALNUT	AMAZED	14.4"W X 47.1"H X 0.51" THICK
WD1	WOOD DOOR	VT INDUSTRIES	COLLECTION: HERITAGE; SPECIES: CHERRY, CUT: PLAIN SLICED; MATCHING: BOOK	#WH18 WHEAT		
WD1	WOOD DOOR (HIGH STC)	VT INDUSTRIES	COLLECTION: HERITAGE; SPECIES: CHERRY, CUT: PLAIN SLICED; MATCHING: BOOK	#WH18 WHEAT		
WG1	WALL GUARD	INPRO	PALLADIUM 3D TRIM; HORIZONTAL TOP CAP; PROVIDE FACTORY-FINISHED EDGES	#0152 BLACK		3"H X 1/2" THICK
WP1	WALL PROTECTIO N	INPRO	PALLADIUM RIGID SHEET; WAINSCOT PARTIAL-HEIGHT WALL PANEL	BRUSHED NICKEL #5E016		48"H X 0.040" THICK

TOTAL COST OF FINISHES, LP-48A	
TOTAL COST OF FINISHES, LP-48	
TOTAL COST OF FINISHES, BOTH BUILDINGS	

CERTIFICATIONS AND APPROVAL

